

M/s J.G. Sponge & Power (P) Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 12 September 2016 · Writ-C No. 34999 of 2013 · **Writ dismissed as infructuous; 4.20 challenge not decided.**

HEADNOTE

The petitioner challenged demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. An interim order of 2 July 2013, following connected Writ Petition No. 30582 of 2009, restrained the demand until further orders. On the petitioner's later statement that the writ had become infructuous, the Division Bench dismissed it as infructuous without deciding the 4.20 issue.

FACTUAL SUMMARY

M/s J.G. Sponge & Power (P) Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. The writ was connected with Writ Petition No. 30582 of 2009 and similar pending matters. On 2 July 2013 the Court, following the connected interim, restrained the respondents from demanding additional security until further orders. On 12 September 2016 the petitioner's counsel stated that the writ had become infructuous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as infructuous on the petitioner's statement, without a decision on the clause. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF ADDITIONAL SECURITY DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Petition dismissed as infructuous without a merits determination. ¶ 2